Who is regulating the system?

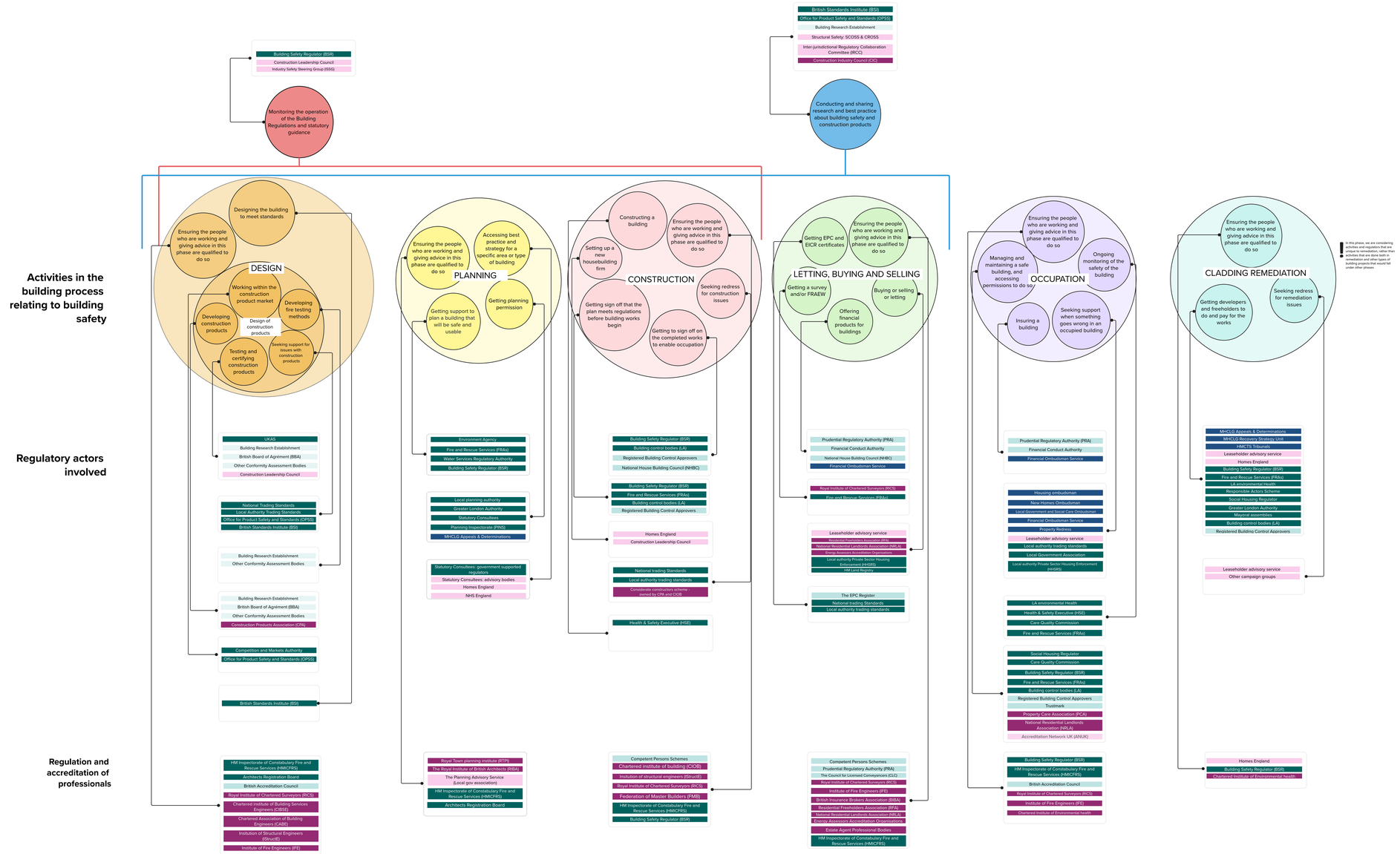
Description

This map shows the different actors involved in the setting of standards and regulation of aspects of the residential building system in England. This is based on their own descriptions of their roles as of February 2025.

We have grouped these regulatory actors by phase of the building process, what activity they regulate within that phase, and their role.

How to use this map

- Activities in the building process relating to building safety are grouped by the phase of the lifecycle of a building they relate to. The regulatory actors involved in that activity are connected by a line and listed (in most cases) underneath.
- If you want to know more about a specific regulator, see the list of regulatory actors included on the final page
- There may be regulators or roles missing. If you spot any errors, help us maintain the accuracy of the map by emailing us at SystemDesignTeam@communities.gov.uk



Regulatory actors included

We have considered the regulatory actors who work across the building safety and quality system, this includes government supported regulators who have legislative or government funded powers to regulate, regulators and accreditors working independently of government both for and not-for profit, redress bodies who regulate when there are issues, as well as trade associations, membership groups and advisory bodies who do not have powers to regulate but whose activities seek to regulate and improve the system for those they work for and with.

Government supported regulators

Regulators specific to **homes in healthcare settings**

- **UKAS**
  UKAS is the National Accreditation Body for the United Kingdom. They are mandated by government to assess and accredit organisations that provide testing, inspection, calibration, validation and verification.
- **Competition and Markets Authority**
  An independent non-ministerial department which promotes competitive markets and tackling unfair behaviour in a number of ways. It's the principal competition regulator in the UK.
- **National trading Standards**
  National Trading Standards is responsible for gathering intelligence from around the country to inform its decision-making and its system of priorities. This is different to the support provided by local trading standards services. National Trading Standards instructs, or they may provide funding to, local teams to bring into trading standards offences.
- **Planning Inspectorate (PINS)**
  An executive agency sponsored by MHCLG the Planning Inspectorate deals with planning applications, examinations of local plans and other development plan documents, specialist casework in England.
- **Office for Product Safety and Standards (OPSS)**
  The Office for Product Safety and Standards (OPSS) is a UK national product regulator within the Department for Business and Trade (DBT). It works to ensure consumer products ensuring the claimed performance matches the reality, supports compliance with product safety and educating and informing industry.
- **British Standards Institute (BSI)**
  BSI is a non-profit distributing organisation that plays a central role in the trade facilitation of standardisation, systems assessment, product certification, training and advisory services. BSI has a Memorandum of Understanding with OPSS that underpins and establishes the position of BSI as the recognised National Standards Body.
- **Architects Registration Board**
  The Architects Registration Board (ARB) ensures those who are suitably competent are allowed to practise as architects, as it is a protected title, by approving the professional competences required to join the Register of architects. Accountable to MHCLG.

Dependent on a building's type, use, and location it may be regulated by a specific body

- **Care Quality Commission**
  An arms length body of DHSC and the independent regulator of health and social care in the England, including the buildings these services are run from.
- **HM Inspectorate of Constabulary Fire and Rescue Services (HMICFRS)**
  HM Inspectorate of Constabulary Fire and Rescue Services monitor and report on the efficiency and effectiveness of the police and FRSs with the aim of encouraging improvement.
- **Building Safety Regulator (BSR)**
  The BSR is a directorate of HSE responsible for Building Control for higher-risk buildings, including enforcement of the Building Safety and construction-product requirements.
  The BSR oversees and monitors the performance of all Building Control Bodies (BCBs) in relation to their building control functions, including monitoring compliance with the Building Safety Regulator's Standards and private sector Registered Building Control Approvers and local authority building control.
- **Social Housing Regulator**
  An arms length body of MHCLG responsible for the economic regulation and inspection of providers of social housing, including governance, financial viability and how they are moving that maintains tender confidence and protects the interests of those who live in or use these standards are breached and there is a significant risk to tenants or potential tenants.
- **National Parks Planning Authority**
  The National Park Authority is the planning authority for each National Park and is responsible for planning for all new buildings within its area. National Parks have their own planning policies which are taken into account in the decision-making process for planning and planning applications for developments in National Parks are made to the National Park Authority instead of the local authority.
- **Historic England**
  Historic England is the government's adviser for the historic environment, championing historic places and helping people to understand, enjoy and care for them. It is an executive non-departmental public body, sponsored by DCMS. It is responsible for advising on listings for England and is involved in planning matters and building control related to these buildings and parks.

Regulators specific to **environment and wider services** for buildings

- **Fire and Rescue Services (FRSs)**
  FRSs have core functions which cover statutory community safety-orientated activities go beyond emergency response and include risk management planning and the enforcement of Fire Safety Orders.
- **Environment Agency**
  A non-departmental public body, sponsored by DEFRA responsible for protecting and improving the environment. It contains a number of complemented and wider functions:
  - Flood risk management
  - Water quality and water resources management
  - Waste
  - Incident and emergency response
  - Land contamination
  They are also responsible for managing the risk of flooding from main rivers, reservoirs, estuaries and the sea.
- **Water Services Regulatory Authority**
  A non-ministerial government department, Ofwat, is the body responsible for economic regulation of the privatised water and sewerage industry in England and Wales including supply of water and sewerage services.
- **Health & Safety Executive (HSE)**
  The Health and Safety Executive (HSE) is Britain's national regulator for workplace health and safety. They are an arms length body of the Department for Work and Pensions

Mayoral organisations

- **Mayoral assemblies**
  Holds the Mayor and Mayoral advisers to account by publicly examining policies and programmes through committees, hearings, plenary sessions, site visits and investigations. They may be involved in planning applications in their area.
- **Greater London Authority**
  The devolved regional governance body of London. It is involved in planning applications, the management of remediation works, and the setting of housing strategy at a local level.

There are a range of **local authority functions** which play a role in building safety and quality

- **Local authority building control**
  A building control body (BCB) checks that any building work carried out meets the requirements of the relevant building regulations.
  There are two types of building control body: Local Authority and Registered Building Control Approvers (private registered building control approvers). They will notify your local authority if they think a building is being or has been carried out
- **Local planning authority (LPA)**
  LPA is the public authority whose duty through legislation is to carry out spatial planning functions for a particular area. The broadest responsibility for LPAs is to prepare a Local Development Plan.
  - Planning
  - Housing
  - Environmental Health
  - Licensing
  - Conservation and Listed Buildings
  - Leisure
  - Economic Development
  - Land Use Planning
  - Development Management
  - Community Regeneration/Development
  - Transport Planning (Highways is a separate function, but often most not independently of other Council departments management and functions)
- **Local authority Private Sector Housing Enforcement (HHSRS)**
  A local authority inspector will identify hazards that are likely to lead to harm while the property is in use, using the Housing Health and Safety Rating System (HHSRS) which is a method for assessing the risk to health and safety in residential properties. A local authority can take enforcement action if there are hazards in accommodation. These may be separate teams or sub-groups of an environmental health.
- **Local authority environmental Health**
  Local authorities have a legal duty to promote environmental health and protect the health, safety and benefit of people who live in, work in and visit their area. The Environmental Health Department gives advice and enforces statutory functions including those relating to housing and mobile home sites.
- **Local authority trading standards**
  Trading standards teams support local businesses by helping explain legislation and enforcing it, protecting them from rogues, including around construction and development. Trading standards resource is focused on working with higher risk activities and non-compliant businesses.
- **Responsible Actors Scheme (RAS)**
  RAS is run by MHCLG. Under the RAS Eligible Developers are obliged to sign up to a Developer Remediation Contract (DRC) when they are remediating unsafe buildings (residential or mixed use) with relevant fire safety defects that have been developed or refurbished within the last 30 years. The DRC requires Eligible to comply with time requirements (an have huge consequences for developers).
- **The EPC Register**
  This is a central database of all EPCs issued to residential and non-domestic properties across the UK. Managed by MHCLG
- **Local Government Association**
  The LGA host the Joint Inspection Team, a multi-disciplined team who inspect unsafe buildings on behalf of LAs
- **HM Land Registry**
  Anyone buying or selling land or property, including through a mortgage, must apply to HM Land Registry to register unregistered land or property and to record changes of ownership. Failure to register a property in England affecting registered land or property, such as a mortgage, a lease or a right of way

These organisations are **statutory consultees** in the planning process. Statutory consultees provide expert advice on potential impacts of a proposed development, helping the planning authority make informed decisions, they do not make decisions or enforce them.

Private sector and independent regulators

- **Competent Persons Schemes**
  Competent person schemes allow people to self-certify certain types of building work if they are competent to do work or to installer. This is instead of getting building regulations approval. Schemes have different application processes, rules and fees.
- **Registered Building Control Approvers**
  A building control body (BCB) checks that any building work carried out meets the standards set in the building regulations.
  There are two types of building control body: Local Authority and Registered Building Control Approvers (private approvers). They will notify your local authority if they think a building is being or has been carried out
- **Financial Conduct Authority**
  An independent public body funded entirely by the fees charged to regulated firms, which regulates the conduct of around 42,000 businesses in the UK to ensure that financial markets work well. It sets standards, gives advice and guidance and regulates individuals and firms.
- **British Accreditation Council**
  An educational accreditation agency recognised by the British Government, which accredits organisations including the Fire Service College
- **The Council for Licensed Conveyancers (CLC)**
  The Council for Licensed Conveyancers, or the CLC, is the regulatory body for Licensed Conveyancers in England and Wales. The CLC's purpose is to set entry standards and regulate the profession of Licensed Conveyancers
- **Prudential Regulatory Authority (PRA)**
  Part of the Bank of England, promotes the safety and soundness of insurers, and the protection of policyholders
- **National House Building Council (NHBC)**
  UK's leading independent provider of warranty and insurance for new-build homes. They offer training and quality services to the housebuilding industry, inspecting and directly insuring new homes.
- **Trustmark**
  Trustmark is the Government Endorsed Quality Scheme that covers work a consumer chooses to do in their home, or to improve their home. When a consumer chooses a Trustmark Registered Trader, they can be confident that an organisation that has been vetted to meet required standards.

Product testers

Conformity assessment bodies provide assurance that products being supplied meet the expectations specified or claimed by their sellers. CABs receive their status from UKAS

Examples

- **Building Research Establishment**
  BRE provides for-profit independent testing, inspection and certification services for individual products to whole buildings. They contribute to development of UK and global and standards for government, and develop their own standards in partnership with government and industry. They also do building research and innovation.
- **British Board of Agrément (BBA)**
  Provides a wide range of for-profit product testing, quality assurance services. They also provide services for the construction industry including installer inspection quality assurance, product certification and company quality assurance

Redress and appeal bodies

- **Housing ombudsman**
  The Housing Ombudsman Service (HOS) looks at complaints about registered providers of social housing, for tenants, leaseholders and other landlords, managers and agents. The service is free, independent and impartial.
- **New Homes Ombudsman**
  New Homes Quality Board launched the New Homes Ombudsmen Service which is able to receive complaints about new homes built by its members who have registered on a voluntary basis.
- **Local Government and Social Care Ombudsman**
  Investigate individual complaints about councils, of adult social care providers (including care homes and home care agencies) and other services and bodies organisations, if they decide to investigate, they look at whether injustice has been made decisions the right way.
- **MHCLG Appeals & Determinations**
  Site of appeal if a local authority refuses an application to relax or dispense with one or more requirements of the building regulations
- **MHCLG Recovery Strategy Unit**
  Relevant authorities have the power to prevent unsafe residential premises and undertake necessary remediation work, and to recover the costs of refusing to pay for these buildings, including through the Land Registry (left and sacrificial Share Extra through any means necessary, working closely with other enforcement authorities.
- **Financial Ombudsman Service**
  Settles complaints between consumers and businesses that provide financial services including mortgages and home insurance
- **HMCTS Tribunals**
  The Property Chamber tribunals handle applications, appeals and references relating to disputes over residential property. This includes disputes related to granting Remediation Orders under the Building Safety Act
- **Property Redress**
  An independent organisation dedicated to resolving disagreements between tenants and property agents in the UK. They are recognised by the Department for Communities and Local Government (DCLG) and the Welsh Government. Redress Scheme covers Lettings Agent Team Fees, Tenancy Deposits, Property Management Fees and Lettings Management Fees. We are also authorised by the Chartered Institute of Arbitrators to offer Adjudication Services, under the ADR Regulations 2015

Membership groups and trade associations

- **Construction Products Association (CPA)**
  The Construction Products Association is the leading organisation that represents manufacturers and distributors of construction products and materials
- **Royal Institute of Chartered Surveyors (RICS)**
  The Royal Institution of Chartered Surveyors (RICS) is a global professional body for those working in the Built Environment, Construction, Land, Property and Real Estate.
- **Royal Town planning institute (RTPI)**
  A leading membership organisation and a Chartered Institute responsible for maintaining professional standards in town planning
- **Chartered institute of building services engineers (CIBSE)**
  The leading authority and standard setter on building services engineering. CIBSE leads on global best practice in the profession. It is a full member institute of CEDA and licensed by the Engineering Council
  to provide chartered status for inclusion on its Register of Professional Engineers.
- **Chartered association of building engineers (CABE)**
  Professional body for building engineers in the UK and overseas.
- **The Engineering Council**
  The UK regulatory body for the engineering profession. They hold the national registers of nearly 223,000 Engineering Technicians (EngTech), Incorporated Engineers (IEng), Chartered Engineers (CEng) and Information Communications Technology Technicians (ICTTech).
- **Chartered institute of building (CIOB)**
  The leading international professional body for those working in and leading the construction industry.
- **Insitution of structural engineers (IStructE)**
  The leading international professional body for those working in and leading the construction industry.
- **Institute of Fire Engineers (IFE)**
  A global professional membership body for those in the fire sector
- **Considerate constructors scheme - owned by CPA and CIOB**
  An independently managed, not-for-profit organisation that works with the UK's major construction industry and the public to raise standards and build trust in construction.
- **Federation of Master Builders (FMB)**
  The Federation of Master Builders is a UK trade association which aims of protecting the interests of small and medium-sized building firms.
- **Chartered Institute of Environmental health**
  A professional body for environmental health practitioners. It acts as a knowledge centre and awarding body - providing qualifications, events, and training and information materials on topics relevant to health, wellbeing and safety
- **Construction Industry Council (CIC)**
  The Construction Industry Council (CIC) is the representative forum for the professional bodies, research organisations and specialist business associations
- **The Royal Institute of British Architects (RIBA)**
  The Royal Institute of British Architects is a global professional membership body for architecture .
- **The Property Care Association (PCA)**
  The Property Care Association (PCA) is the trade association representing specialists who can be trusted to resolve problems affecting buildings
- **National Residential Landlords Association (NRLA)**
  The UK's largest landlord association, representing and supporting private-residential landlords in England and Wales
- **Residential Freeholders Association (RFA)**
  The Residential Freehold Association (RFA) is the representative organisation for the UK's largest professional freeholders. Their membership criteria includes adherence to a code of practice, but they do not support mandatory regulation in the sector.
- **National Fire Chief Council (NFCC)**
  NFCC is an independent membership association and the professional voice of UK fire and rescue services
- **British Insurance Brokers Association (BIBA)**
  The British Insurance Brokers' Association (BIBA) is the UK 's leading general insurance organisation representing the interests of insurance brokers, intermediaries and their customers.
- **Association of British Insurers (ABI)**
  The ABI represents the insurance sector. They are a highly developed industry lobby group and are the owner of the ABI/ McGill Facility and report data to us on its development.
- **Energy Assessors Accreditation Organisations**
  There are multiple organisations approved to provide energy assessors, including ECMK, Elmhurst, Quidos, Stroma, Orbit, Warwick, Building Services, Quidos and. A domestic energy assessor must be a member of at least one of these organisations to practise.
- **Estate Agent Professional Bodies**
  There are multiple professional bodies for estate agents, including: The Association of Residential Lettings Agents, The National Association of Estate Agents , ualsagent, and Propertymark. An estate agent does not need to be a member of one of these organisations.

Advisory bodies

- **Industry Safety Steering Group (ISSG)**
  The Industry Safety Steering Group (ISSG) is a forum for industry bodies, trade and professional bodies to prioritise the built environment industry's response to the recommendations and change as a result of MHCLG. The aim of the ISSG is to identify and address challenges, recommend solutions, overcome barriers, and implement and accomplish change with all actors in the built environment industry, including elements of the Building Safety Programme.
- **Structural Safety: SCOSS & CROSS**
  Helps professionals to make structures safer by publishing safety information, based on the reports they receive and information in the public domain. They provide free safety information for the built environment.
- **The planning advisory service (Local gov association)**
  Funded by MHCLG, the Planning Advisory Service (PAS) provides consultancy and peer support, learning events and online resources to help local authorities understand and respond to planning reform
- **Natural England**
  Sponsored by DEFRA, Natural England is the government's adviser for the natural environment in England.
- **Leaseholder advisory service**
  Government funded, independent advice for residential leaseholders and park home residents
- **Construction Leadership Council**
  The Construction Leadership Council (CLC) works between industry and Government to identify and deliver actions supporting UK construction in building greater efficiency, skills and growth.
- **Inter-jurisdictional Regulatory Collaboration Committee (IRCC)**
  The purpose of the Inter-jurisdictional Regulatory Collaboration Committee (IRCC) is to promote effective international collaboration between the current practice' building regulatory systems, in particular with a view to a common objective, or performance-based. The BSR represents the UK here.
- **Homes England**
  Homes England is the government's housing and regeneration agency. It is an executive non-departmental public body, sponsored by MHCLG, which forms partnerships that bridge the gap between the private and public sectors and encourages the design of safe, sustainable and high quality buildings.
- **NHS England**
  Provide patterns and guidance for the creating of new healthcare sites including residential facilities
- **Accreditation Network UK**
  The Accreditation Network UK is a central resource for tenants, landlords and scheme operators interested in accreditation of private rented housing. ANUK provides information, advice and promotes best practice for scheme operators.

Regulatory bodies considered, but not included

- **CICAIR**
  The construction industry council approved inspectors scheme
  This organisation no longer exists as its function is now part of the BSR
- **Agricultural & Horticulture Development Board (Nitrates and Planning)**
  Sponsored by DEFRA the Agricultural and Horticulture Development Board (AHDB) represents farmers, growers and companies in the food supply chain.
  As our focus is on residential buildings, this was out of scope
- **Office for nuclear regulation**
  UK's independent nuclear regulator for safety, security and safeguards.
  As our focus is on residential buildings, this was out of scope
- **The Sports Grounds Safety Authority (SGSA)**
  The SGSA is the UK Government's advisor on safety at sports grounds and the world leader in safety. Put simply, our purpose is to ensure sports
  As our focus is on residential buildings, this was out of scope
- **Public Health England / UKHSA**
  Public Health England was replaced by UK Health Security Agency and Office for Health Improvement and Disparities.
  UKHSA as the radiating organisation has no clear link to buildings beyond site safety which is beyond our scope
- **Drinking Water Inspectorate**
  The Drinking Water Inspectorate (DWI) provides independent assurance that public water suppliers in England and Wales secure and drinking water quality is acceptable to consumers. DWI is a consultee in planning where water supply is
  Don't play an active role in planning or maintenance in regards to property, unless it is water plant